

25STCV25941 25STCV25941

County: los-angeles

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Case Number: 25STCV25941 Hearing Date: August 3, 2026 Dept: 309

Superior Court of California

County of Los Angeles

DEPARTMENT

309

TENTATIVE RULING

MICHAEL ALARCON, et al.

vs.

GENERAL MOTORS, LLC

Case

No.: 25STCV25941

Hearing Date: August 3, 2026

GM's

demurrer is SUSTAINED, WITHOUT LEAVE TO AMEND, as to the fifth cause of action.

On 9/4/2025,

Plaintiffs Michael and Erin Alarcon (collectively, Plaintiffs) filed suit

against GM, LLC (Defendant), alleging violations of the Song-Beverly Warranty

Act.

On

4/7/2026, Defendant demurred to Plaintiffs' fourth and fifth cause of action for fraudulent inducement.

Discussion

Defendant

argues that Plaintiffs have failed to allege sufficient facts to state a claim for breach of implied warranty and fraudulent inducement.

As for the

breach of implied warranty claim, implied warranty claims are subject to a four-year statute of limitations. (Comm. Code, § 2725; *Montoya v. Ford Motor Co.* (2020) 46 Cal.App.5th 493, 495.)

Because an

implied warranty is one that arises by operation of law rather than by an express agreement of the parties, courts have consistently held it is not a warranty that explicitly extends to future performance of the goods[.]” (*Cardinal Health 301, Inc. v. Tyco Elecs. Corp.* (2008) 169 Cal.App.4th 116, 134.) For this reason, “[t]he delayed discovery doctrine does not apply to implied warranty claims.” (*Nguyen v. Nissan North America, Inc.* (2020) 487 F.Supp.3d 845, 854 n.3.)

Here,

Plaintiffs entered into a warranty contract with Defendant regarding a 2021 GMC Yukon XL on 6/16/2021. Accordingly, Plaintiffs had until 6/16/2025 to bring a claim for breach of implied warranty. Plaintiffs did not file this claim until 9/4/2025, and thus the claim is time-barred on its face.

As

for the contention that Plaintiffs' claim for concealment is insufficiently pled, the Court disagrees.

However, the

Court agrees that Plaintiffs' claim is barred by the economic loss doctrine, as Plaintiffs seek purely economic damages allegedly sustained from the purchase of the Subject Vehicle. In other words, Plaintiffs allege they would not have purchased the vehicle. (Complaint ¶ 54.)

The

California Supreme Court's recent decision in *Rattagan v. Uber Techs., Inc.* (2024) 17 Cal.5th 1, 553 P.3d 1213 clarifies that fraudulent concealment claims are permissible only where the concealed information exposes plaintiffs to risks or harms beyond the reasonable contemplation of the contractual relationship. (Id. at 13, 31.) For example, the *Rattagan* plaintiff alleged reputational and personal harm, including arrest and public vilification, resulting from Uber's intentional concealment during their contractual relationship—harms that extended far beyond economic loss tied to the contract. By contrast, Plaintiff here alleges no such independent harm. Plaintiff's allegations relate solely to contractual grievances about vehicle performance and warranty obligations.

The

California Supreme Court's recent dismissals of *Dhital v. Nissan North America, Inc.* and *Kia America, Inc. v. Superior Court (Kia)* on December 18, 2024 further reinforce the application of the ELD to bar claims like Plaintiff's. In *Dhital*, the plaintiffs alleged fraudulent concealment based on the manufacturer's pre-sale knowledge of vehicle defects obtained through consumer complaints, warranty data and other sources. Similarly, *Kia* involved allegations of presale concealment where plaintiffs claimed the automaker failed to disclose known defects in its vehicles. The dismissals of these cases suggest that the California Supreme Court did not find unresolved or novel legal issues warranting further review, particularly in light of its recent decision in *Rattagan*, which clarified the application of the ELD to fraudulent concealment claims. Together, these dismissals reinforce *Rattagan* as the paramount authority governing the economic loss doctrine.

Based on the

foregoing, Defendant's demurrer is sustained, without leave to amend, as to the fourth and fifth causes of action.

It is so ordered.

Dated: July
, 2026

Hon. Jon R.
Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must send an email to the court at by 4 p.m. the day prior as directed by the instructions provided on the court website at www.lacourt.org. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.